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County: los-angeles

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Case Number: 23STCV25858 Hearing Date: August 11, 2026 Dept: 1

Final
Approval of Class Action Settlement

Department
SSC-1

Moore v. Williamson Morgan & Associates,
LLC.

Case
No. 23STCV25858

Hearing: August
11, 2026

TENTATIVE
RULING

The
Court hereby GRANTS final approval and awards the following: (1) $500,000.00 (33 1/3%) for
attorney fees to Class Counsel, E&L, LLP; (2) $15,542.70 for attorney costs to Class Counsel; (3) an enhancement
payment of $7,500.00 to the
class representative, Jamise Moore; (4) $37,500.00 (75% of $50,000 PAGA
penalty) to the LWDA; and (5) $7,250.00 for
settlement administration costs to Phoenix Class Action Administration
Solutions.

BACKGROUND

This is a wage and hour class action.

Defendant is a known debt recovery and liquidation entity, and hold themselves out to recover outstanding receivables and maximize liquidations. As a local entity, they service clients and reach debtors across North America. Plaintiff was employed by Defendant from in or about November 2022 to on or about February 21, 2023 as a debt collector.

On October 23, 2023, Plaintiff commenced this Action by filing a Complaint alleging causes of action against Defendant for (1) failure to pay wages for all hours of work at the legal minimum wage rate in violation of Labor Code §§ 1194 and 1197; (2) failure to pay proper overtime wages for daily overtime worked, all hours worked, and failure to include additional remuneration when calculating overtime wages in violation of Labor Code §§ 510, 1194, and 1198; (3) failure to authorize or permit meal periods in violation of Labor Code §§ 512 and 226.7; (4) failure to authorize or permit rest periods in violation of Labor Code § 226.7; (5) failure to pay all accrued and vested vacation/paid time off wages in violation of Labor Code § 227.3; (6) failure to provide sick pay in violation of Labor Code § 246; (7) failure to indemnify employees for employment-related losses and expenditures in violation of Labor Code § 2802; (8) failure to timely pay earned wages during employment in violation of Labor Code § 204; (9) failure to timely pay all earned wages and final paychecks due at the time of separation of employment in violation of Labor Code §§ 201, 202, and 203; (10) failure to provide complete and accurate wage statements in violation of Labor Code § 226; and (11) unfair business practices in violation of Business and Professions Code § 17200, et seq.

On February 28, 2024, Plaintiff filed the Operative First Amended Complaint alleging causes of action against Defendant for (1) failure to pay wages for all hours of work at the legal minimum wage rate in violation of Labor Code §§ 1194 and 1197; (2) failure to pay proper overtime wages for daily overtime worked, all hours worked, and failure to include additional remuneration when calculating overtime wages in violation of Labor Code §§ 510, 1194, and 1198; (3) failure to authorize or permit meal periods in violation of Labor Code §§ 512 and 226.7; (4) failure to authorize or permit rest periods in violation of Labor Code §226.7; (5) failure to pay all accrued and vested vacation/paid time off wages in violation of Labor Code § 227.3; (6) failure to provide sick pay in violation of Labor Code § 246; (7) failure to indemnify employees for employment-related losses and expenditures in violation of Labor Code § 2802; (8) failure to timely pay earned wages during employment in violation of Labor Code § 204; (9) failure to timely pay all earned wages and final paychecks due at the time of separation of employment in violation of Labor Code §§ 201, 202, and 203; (10) failure to provide complete and accurate wage statements in violation of Labor Code § 226; (11) unfair business practices, in violation of Business and Professions Code § 17200, et seq.; and (12) civil penalties pursuant to the PAGA, Labor Code § 2698, et seq.

Counsel represents that prior to mediation: 1) Defendant produced approximately 25% sampling of relevant time and pay records as well as wage and hour policies and other documents and information relevant to the claims: 2) Counsel transmitted the time and pay data to their hired expert, Mr. Berger, and requested that Mr. Berger confirm the date range of the data provided, and extrapolate: (i) the number of pay periods and shifts worked by the class during the Class Period and the PAGA Period, (ii) the average rate of pay for the class, (iii) the number of shifts worked over 3.5 hours, over 5.0 hours, over 6.0 hours, over 8.0 hours, over 10.0 hours, and over 12.0 hours, and (iv) the first and second meal period violation rates based on the produced time records; and 3) Class Counsel requested that Mr. Berger review the time data produced by Defendant to determine the amount of unpaid overtime, unpaid off the clock and unpaid rest and recovery, unpaid minimum wage, unpaid sick pay, rest and meal break premiums, unreimbursed business expenses related to use of cell phones.

On October 25, 2024, the Parties participated in an all-day mediation presided over by David Phillips, Esq., which led to this Agreement to settle the Action. A fully executed long form Settlement Agreement was filed with the court on November 11, 2025 attached as Exhibit 1 to the Amended Declaration of David Lavi ("Lavi Decl.") ISO Preliminary Approval.

On December 15, 2025, the Court continued preliminary approval for further briefing and revisions. In response, on January 27, 2026, Counsel filed a fully executed Amended Settlement Agreement attached as Exhibit 3 to the Declaration of David Lavi ("Lavi Supp. Decl.") ISO Preliminary Approval.

Preliminary Approval was granted on March 2, 2026. Notice was given to the Class Members as ordered. (See Declaration of Jarrod

Salinas (“Salinas Decl.”).)

Now before the
Court is the motion for final approval of the settlement agreement.

CLASS
DEFINITION AND ESSENTIAL TERMS OF SETTLEMENT AGREEMENT

The
essential terms are as follows:

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“Class” means all current and former
employees who worked for Defendant as nonexempt, hourly paid employees in the
State of California at any time during the Class Perio (Settlement Agreement,
¶1.5.)

o
“Class Period” means the period from
October 23, 2019 to December 31, 2024. (¶1.12)

o
The
final mailing list contained 208 individuals identified as Class Members. (Salinas
Decl., ¶3.)

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“Aggrieved Employee” means all current
and former employees who worked for Defendant as non-exempt, hourly paid
employees in the State of California at any time during the PAGA Period. (¶1.4)

o
“PAGA Period” means the period from
December 8, 2022 to December 31, 2024. (¶1.31)

o There are 127
Aggrieved Employees who worked a total of 2,991 workweeks during the PAGA
Period. (Salinas Decl.,
¶15.)

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Based on a review of their records,
Defendant estimates there were 204 Class Members who collectively worked a
total of 9,864 Workweeks during the Class Period, and 115 Aggrieved Employees
who worked a total of 4,863 PAGA Pay Periods during the PAGA Period. (¶4.1)

o The total number of Workweeks was 10,675,
which does not exceed 10,850; thus, the Escalator Clause was not triggered. (Salinas
Decl., ¶12.)

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The
Gross Settlement Amount ("GSA") is $1,500,000, non-reversionary. (¶3.1)

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The
Net Settlement Amount ("Net") ($912,500)
is the GSA minus the following:

o Up to $500,000 (33%) for attorney fees
(¶3.2.2);

o Up to $25,000 for litigation costs (Ibid.)

o
Up to
$10,000 for a Service Payment to the Named Plaintiff (¶3.2.1);

o Up to $15,542.70 for settlement
administration costs (¶3.2.3);

o Payment of $37,500 (75% of $50,000
PAGA penalty) to the LWDA. (¶3.2.5)

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Defendant
will also pay employer-side taxes. (¶3.1)

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Funding

of Settlement: Defendant will deposit money, in an amount equal to the Gross Settlement Amount, into an interest-bearing account, through the Settlement Administrator. The Gross Settlement Amount will be funded by Defendant in two (2) installments: (1) the first installment payment in the amount of $750,000.00 shall be due six months (180 days) after the Court's Final Approval of the Settlement or April 27, 2026, whichever is later; and (2) the second installment payment in the amount of $750,000.00 shall be due six months (180 days) after the first installment payment but no sooner than October 26, 2026. Any interest accrued will be distributed to the Class Members except that if Final Approval is reversed on appeal, then Defendant is entitled to prompt return of the principal and all interest accrued. (¶4.3) In the event of any sale, transfer, assignment, liquidation of assets, or change in control of Williamson Morgan & Associates, LLC occurring prior to the full payment referenced in Paragraph 4.3, Defendant, along with its owners, directors, and shareholders, shall be jointly and severally liable for the remaining balance due, and such unpaid amount will remain payable in accordance with the payment installment structure referenced in Paragraph 4.3. (¶13.1)

o Defendant has provided a declaration in support of the need for a payment plan herein. (Declaration of Dominic Arjonilla, passim.)

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Payments from the Gross Settlement Amount: Within fourteen (14) days after Defendant fully funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.4)

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Uncashed Settlement Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing). (¶4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the

California Controller’s Unclaimed Property Fund in the name of the Class Member thereby leaving no “unpaid residue” subject to the requirements of California Code of Civil Procedure § 384, subd. (b). (¶4.4.3)

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The Settlement was submitted to the LWDA on November 17, 2025. (Exhibit 3 to Lavi Decl. ISO Preliminary Approval.)

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a presumption of fairness exist?

The Court preliminarily found in its Order on March 2, 2026, that the presumption of fairness should be applied. No facts have come to the Court’s attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 208 Class members. (Salinas Decl., ¶3.)

Number of notice packets mailed: 208 (Id. at ¶5.)

Number of undeliverable notices: 8 (Id. at ¶7.)

Number of
opt-outs: 0 (Id. at ¶8.)

Number of
objections: 0 (Id. at ¶9.)

Number of
participating class members: 208 (Id. at
¶11.)

Average
individual payment: $4,409.65 (Id.
at ¶14.)

Highest
estimated payment: $23,370.53 (Ibid.)

Lowest
estimated payment: $85.92 (Ibid.)

Number
of Aggrieved Employees: 127 (Id. at
¶15.)

Average PAGA
payment: $98.43 (Ibid.)

Highest
estimated PAGA payment: $321.80 (Ibid.)

Lowest
estimated PAGA payment: $4.18 (Ibid.)

The Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney
Fees and Costs

Class Counsel, request $500,000 (33 1/3 %) in fees and litigation costs and expenses in the amount of $15,542.70 to Class Counsel. (Motion ISO Final: 27:23-28:4.) The Settlement provides for attorney's fees up to $500,000 and costs of $25,000 (Settlement Agreement, ¶3.2.2); the class was provided notice of the requested awards and none objected. (Salinas Decl., ¶9 and Exhibit A thereto.)

"Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method."
(Wershba at 254.)
Here, class counsel requests attorney fees using the percentage method, as cross checked by lodestar. (Motion ISO Final, pgs. 24-28.)

The fee request represents 33% of the gross settlement amount which is the average generally awarded in class actions. See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 ("Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.").

Counsel has provided the following lodestar information:

Biller

Hours

Rate

Total

David Lavi

181.60

$948

$172,156.80

Arie Ebrahimian

71.7

$948

$67,971.60

Total

253.3

$240,128.40

(Lavi
Decl. ISO Final, ¶53 and Exhibit C thereto.)

Therefore, counsel represent they have spent over 253.3 hours in connection with this litigation, resulting in a lodestar of $240,128.40, using the Laffey hourly rate of $948, which would require a multiplier of 2.08 to yield the requested fee amount. (Motion ISO Final, 26:11-12; Lavi Decl. ISO Final, ¶53 and Exhibit C thereto.) Using a $650 rate, which counsel declare to be what they would charge for hourly work as opposed to contingency work as was provided here, the total lodestar would be $164,645.00, requiring a multiplier of 3.04.[1]

As for costs, class counsel has incurred costs of $15,542.70. (Lavi Decl. ISO Final, ¶55 and Exhibit E thereto.) Class Counsel is requesting $15,642.70 in costs, which is less than the settlement cap of $25,000. The costs in this case include, but are not limited to, filing fees ($1,524.20), Expert Analysis of Time/Payroll Records ($5,940), and mediation ($7,450). (Ibid.) Counsel further expects to spend an additional $100 in costs through completion of this matter. (Id. at ¶52.) The costs seem reasonable and necessary to litigation.

Based on the above, the Court awards $500,000 (1/3) for fees and $15,642.70 for litigation costs.

D.
Incentive
Awards to Class Representatives

The Settlement agreement provides for up
to $10,000 an incentive award for the Named Plaintiff. (Settlement Agreement, ¶3.2.1.)

Plaintiff Moore represents that her contributions
to this litigation include, and are not limited to: obtaining counsel,
gathering documents, reviewing documents, identifying witnesses, having
numerous conversations with counsel, remaining available during mediation, and
reviewing the settlement. (Moore Decl., ¶¶18-20.)

The Court notes that such
efforts are commendable, yet not exceptional. Based on the above, the Court
awards an enhancement in the amount of $7,500.

E.
Claims
Administration Costs

The claims administrator requests $7,250 for the costs of administering the settlement. (Salinas Decl., ¶17.) This
is less than the $15,542.70 maximum amount estimated in the Settlement
Agreement; (Settlement Agreement, ¶3.2.3); and disclosed in the notice to class
members, to which there were no objections.

Based on all the work performed by the
Claims Administrator, the recommendation is to award costs in the requested
amount of $7,250.

[1] Counsel propose use of a
Laffey Matrix rate of $948, despite having a $650 rate (should they charge hourly
instead of work via contingency fees). Counsel states, "Given my years of
experience, and the focus of my practice, if I were to charge for this type of
work by the hour, my current hourly rate would be $650 per hour. This rate is
counsel's current billing rate and is supported by the experience in these
types of cases. Based on the information I have, I believe that our rate is
reasonable and appropriate fees for Los Angeles attorneys with comparable

expertise, experience, and qualifications. Following review of our case file and hours, I have spent over 181.60 hours on this matter; my approximate hourly rate based on the widely used Laffey Matrix is $948." (Lavi Decl., ¶53.) Counsel further states, "My colleague, Arie Ebrahimian, has spent approximately 71.70 hours on this case and his approximate hourly rate is $650 per hour, and based on the Laffey Matrix is $948. As such, Mr. Ebrahimian's lodestar is approximately $67,971.60." (Ibid.)